

A Sentence at Law — Part Two, Chapter 8

A Sentence at Law against the Slanderer of the Sacred School — Part Two, Chapter 8 (*Sententia Iuris*)

George Turnbull, S.J. (Georgius Turnebullus Tranentinus), Reims: Simon de Foigny, 1632

From the complete English translation of Turnbull's two replies to Robert Baron of Aberdeen — Part One, the Imaginarii Circuli Quadratura Catholica ("The Catholic Squaring of the Imaginary Circle," Reims 1628), and Part Two, the Sententia Iuris ("A Sentence at Law," Reims 1632). The chapter below is Part Two, Chapter 8, given whole and unabridged. An appendix follows with the adversary's objection as Baron himself framed it in the Apodixis Catholica (1631), transcribed from the page images of the 1631 edition and translated.

Chapter 8. On behalf of the same truth, against another line of objections.

1. In a second way of assailing it, the adversary objects that our Catholic assertion labors under a varied and manifold uncertainty. First, because many Catholics have either rejected it or called it into doubt. Whence Stapleton does not dare to judge as heretical the opinion of those who say that the Pope can err judicially; therefore neither are the Protestants to be judged heretics who say that the Church's definition is liable to error. Second, because many Catholics say that the Church can err in precepts of morals; and from this it equally follows that she can err in faith. Nor do many of our own men deny this consequence, although they do not grant the antecedent. Third, because it is not yet established with certainty what the supreme definition of the Church is. Is it that which is put forth by the Pope, or that which is put forth by a general Council? Fourth, because, although it were established in general that the judgment of a true Pope is the supreme definition of the Church, yet in particular we do not know whether this or that individual man is

the true Pope. Indeed, it is not established with the certitude of divine faith that he is truly baptized; for the validity of Baptism depends upon the intention of the one baptizing, which is hidden from us. Fifth, because our theologians, in explaining the judiciary power of the Pope and of the Councils, teach things that seem to be at war with infallibility, as the adversary endeavors to infer from certain assertions of the Jesuits Bellarmine, Gregory of Valencia, Suárez, and others.

2. Concerning this objection I pronounce, before all else, that it is so inept that there is nothing in the revealed mysteries so certain that it could not be assailed by a similar argument. For in all things, besides that which is certain concerning the substance and the substantial existence of the revealed matter, theology attaches doubts and controversies concerning the manner that is hidden from us, and concerning various circumstances less fully explored, as is plain from so many disputations of the theologians in every revealed matter. For our present undertaking and for the aim of the Squaring against the calumny of the duplicator, there suffices the certitude — always held as persuaded by all Catholics — concerning the infallible judgment of the supreme Ecclesiastical Tribunal [*supremum Tribunal Ecclesiasticum*] in matters of faith; nor, without a peculiar lie of the duplicator, is it feigned to have been either denied or called into doubt by any Catholics of sound judgment, as will afterward more fully appear. Granted that there has at some time, and among some men, been attached to this certitude a varied uncertainty concerning the things annexed and the circumstances — for example, whether the definition of the supreme Tribunal is to be judged to be not only that which is borne by a general Council approved by the Pope, as all Catholics confess, but also that which is borne by the Pope alone, the things-to-be-supposed being supposed for the maturity of judiciary deliberation. If some have at some time followed the negative part of this question without the mark of heresy, the adversary does not rightly conclude: therefore neither are the Protestants who deny the infallibility of the Church to be judged heretics. For this consequence is inept, on account of the distinction already assigned between a principle never at any time denied by any Catholic of sound brain, and a conclusion at some time denied by certain men.

3. No less is the ineptitude in the second point of the same objection, where, from the fact that some without the mark of heresy have said that the Church can err in a judgment of morals, the duplicator concludes that she can equally err in the decrees of faith. For it is too inept not to advert that judgments of morals are for the most part made about questions of fact, and rest upon the human authority of witnesses,

which is of itself fallible. But the decrees of faith do not rest upon human, but upon divine authority, proposed through some infallible rule, and they regard a question of divine and immutable right.

4. Next, if some anonymous Catholic of ill-tempered brain should say that the Church can err, not only in judgments, but also in precepts of morals — which is to err in questions of right commended by divine authority — there ought not, from the delirium of one man dreaming and contradicting himself, to be inferred an absolute and universal conclusion against the infallible authority defended by all wise theologians. To say, as the duplicator says, that this which is called by us a delirium is common to many Pontifical writers, is an open lie.

5. In the third point of the same objection a greater uncertainty is feigned than the truth admits. For by the consent of all, the Papal definition with a general Council consenting and approving — as also that of the Council itself approved by the Pope — is the supreme of all that can be borne by a human judge. For there both judiciary powers are joined and concur into one judgment: both that proper to the head and supreme Pontiff, and that proper to the Ecclesiastical Magnates. Nothing higher than this concurrence and consent can be feigned in human affairs.

6. In the fourth point alone is touched a common difficulty, to which not all Catholics respond in the same manner: whether it is established by Catholic faith, not only in general, that he who is canonically elected is the true Pontiff, but also in the individual case, that this man by number — for example, Urban VIII — is the true Pontiff before God. But because the author of the Squaring treats and resolves this question diligently enough in another of his books, which he entitles *On the Spiritual Kingdom of the Christian Church*, it will be enough in this place to show that, whichever opinion on that matter we follow — whether of those who deny it with Cajetan, Bañez, and Torquemada, or, better, of those who affirm it with others, among whom of our own men John Azor and Suárez follow — the present knot is an easy one. And indeed, in the path of Suárez and of the others who there affirm, this knot is none at all. For if by the same faith by which the authority of a true Pope is believed in general, there be believed also in particular the truth of this individual Pope, no uncertainty remains. But in the path of the others, who distinguish a twofold certitude in this matter — one altogether of divine faith, by which the authority of a true Pontiff is believed in general; the other a moral certitude of human faith, by which the truth of this Pontiff by number is believed, and which can sometimes suffer along with itself some uncertainty concerning conditions essentially prerequisite, such as the baptismal character, the

male sex, and the like — the whole difficulty is easily resolved by those who advert that the infallible assistance of the Holy Spirit [*assistentia Spiritus sancti*] promised to the supreme Judge and definer of matters of faith is not promised or bound to the person of the definer, but to the office and the see from which he speaks. But the see is always the same rule and matter of divine faith among all Catholics, granted that it happen to be occupied for a short time by one having a hidden impediment to legitimate possession. For an impediment of this kind does not bind the omnipotence of God, so as to keep him from using the ministry of a putative Pope occupying the true see to confirm the faithful — just as of old he used the ministry of Caiaphas the Pontiff, although unbelieving in Christ, to prophesy concerning the necessary death of one man, lest the whole nation should perish; and the ministry of the ass to instruct Balaam; and the ministry of the Pythoness to foretell death to King Saul.

7. In the fifth point it suffices to note that that assertion of the Catholics is wrongly understood by the calumniator, depraved, and dragged to senses foreign to the mind of the authors — as the candid reader will easily advert, if he will deign to inspect the authors themselves, and to note what we said above concerning the lies by which the adversary depraves the common doctrine of the theologians. For example, that assertion of Cardinal Bellarmine, *General Councils confirmed by the Pope cannot err*, is judged ridiculous by the adversary, because it is supposed to be so understood that, before the Papal confirmation, the Holy Spirit is not present to the Council to impede error.

8. But the calumny is to be laughed at, and the ignorance of a man not adverting that someone is said to err, not only when he himself first is deceived in receiving error into himself, but also when he communicates error to others. In this latter sense, then, taken as it were actively, to err sounds nothing ridiculous in the assertion of Bellarmine. For the sense is: The sentence of a general Council confirmed by the Pope is for us an infallible rule of believing, which can neither teach nor contain error. Where, besides, the calumniator omitted to note that the particle *cannot* is often taken in a logical sense, to signify only a repugnance of the terms — which sense is absolute from the various respects denoted by the same particle taken physically. Doubtless the duplicator has perhaps never learned the Aristotelian distinction, declared by St. Thomas (ST I, q. 25, a. 3), between the two modes in which something is said to be possible or impossible: namely, either comparatively, that is [*seu*], with respect to a cause, or absolutely, this respect being set aside. Absolute possibility or impossibility is estimated from the sole

relation of the predicate and the subject to one another, the physical respect to causes being set aside, and ought therefore to be called a logical potency or impotency. For when the predicate is repugnant to the subject, the proposition signifies something absolutely impossible; but when the predicate is not repugnant to the subject, the proposition signifies something absolutely possible. Since, therefore, it is absolutely impossible that a dictate of the Holy Spirit pronounced by a general Council and declared by the Pope should contain error, Cardinal Bellarmine rightly, and in a logical sense, said, *General Councils confirmed by the Pope cannot err*.

9. You will say: just as someone already dead, after he has ceased to be a man, is ridiculously said to be unable to lie, so also a general Council, after it has ceased to be a Council, cannot err. The duplicator intimates this objection in the cited place, but most ineptly. For the name of “Council,” according to the common usage of the theologians, is taken for the assembly of bishops, not only consignifying the time during which that assembly endures in itself, but also consignifying the whole time during which its acts and decrees endure in the records of the Church and in the memory of men. For thus we speak of past Councils, when we ask whether they contain error or do not contain it. Thus also of profane writers no less than of sacred — poets, philosophers, orators — whether they are, in their kind, excellent, mediocre, or of the lowest rank.

Appendix — The objection as Baron himself framed it

Robert Baron, Ad Georgii Turnebulli Tetragonismum Pseudographum Apodixis Catholica (1631), Tractatus V (“De Autoritate Ecclesiae”), pp. 236–237, marginal n. 7. Transcribed from the page images of the 1631 edition; long-s normalized.

English

Fourthly: although it were established in general that the judgment of a Pope teaching from the Chair is the supreme definition of the Church, yet it is not established in particular that the judgments of Martin V, or Eugene IV, or Leo X, or Pius IV — the Roman Pontiffs who in the two preceding centuries confirmed the decrees of Councils — it is not established, I say, that their judgments or definitions are the judgments of supreme Pontiffs; that is, that they were pronounced by men who were true Pontiffs and successors of Peter. Whence it

necessarily follows that we do not have a full and firm certitude of faith concerning the authority of the Councils of Constance, Basel, the Lateran, and Trent. For who of all mortals is certain, or can be certain, that Martin V, Eugene IV, Leo X, and Pius IV were truly Bishops — nay, that they were even Priests, or baptized, or ever either received any Sacrament or ministered one to others? Among you the Sacraments *depend upon the intention of the minister*; that is, no Sacrament is truly effected unless the Minister, when he administers the Sacrament, intends to do what the Church does. But concerning the intention of the Minister we can conjecture and think well; a firm and full certitude of faith we cannot have. Whence Bellarmine, book 3 On Justification, chapter 8, at the paragraph *Dicent*: “No one” (says he) “can be certain with the certitude of faith that he is receiving a true Sacrament, since the Sacrament is not effected without the intention of the Minister, and no one can see another’s intention.” Since therefore no one can know with certainty that Martin V, Eugene IV, etc., were Christians, that is, baptized — likewise that they were Priests or Bishops — it necessarily follows that no one can know with certainty that they were supreme Pontiffs, or true successors of Peter. For he who is not a Priest or a Bishop — and much more he who is not baptized — cannot be the supreme Pontiff of the Christian Church.

Latin

Quartò, quamvis in genere constaret Papæ ex Cathedra docentis sententiam esse supremam Ecclesiæ definitionem, non tamen constat in particulari sententias Martini V. aut Eugenii IV. aut Leonis X. aut Pii IV. Pontificum Romanorum, qui duobus superioribus sæculis Conciliorum decreta confirmarunt, non (inquam) constat eorum sententias aut definitiones, esse sententias summorum Pontificum, hoc est, esse pronunciatas ab iis, qui erant veri Pontifices, & Petri Successores. Vnde necessariò sequitur nos plenam & firmam fidei certitudinem de autoritate Constantiensis, Basileensis, Lateranensis, & Tridentini Conciliorum non habere. Quis enim mortalium omnium certus est aut esse potest Martinum V. Eugen. IV. Leonem X. & Pium IV. verè Episcopos, immò vel Sacerdotes, vel baptizatos fuisse, vel ullum unquam Sacramentum aut recepisse, aut aliis ministrasse? Sacramenta apud vos *pendent ab intentione ministri*, hoc est, nullum Sacramentum verè conficitur, nisi Minister cum Sacramentum administrat, intendat id facere, quod facit Ecclesia. At de intentione Ministri conjectare & benè opinari possumus, sed firmam & plenam certitudinem fidei habere non possumus. Vnde Bellarminus, Lib. 3. de Iustificatione, Cap. 8. §. *Dicent*: *Non potest (inquit) quis esse certus certitudine fidei se percipere verum Sacramentum: cum Sacramentum sine*

intentione Ministri non conficiatur, & intentionem alterius nemo videre possit.

Cum igitur nemo certò scire possit Martinum V. Eugen. IV. &c. fuisse Christianos seu Baptizatos, item fuisse Sacerdotes aut Episcopos, necessariò sequitur neminem certò scire posse, eos fuisse summos Pontifices, seu veros Petri Successores. Nam qui non est Sacerdos aut Episcopus, & multò magis qui non est Baptizatus, is summus Ecclesiæ Christianæ Pontifex esse nequit.